

JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION

Pursuant to 41 U.S.C 3304(a)(2), Federal Acquisition Regulations (FAR) Part 6.302-2(b)(1), 6.302-2(b)(2) the Federal Bureau of Prisons has determined that the procurement of comprehensive medical services for the Federal Correctional Institution Cumberland, hereinafter, referred to as FCI Cumberland located in Cumberland, Maryland, meets the criteria established for other than full and open competition. It is further determined that unusual and compelling urgency precludes full and open competition, and delays in award would result in serious injury, financial, or other liabilities to the government. This limitation on competition is justified as supported by the following information:

1. Agency:

Department of Justice
Federal Bureau of Prisons
Federal Correctional Institution Cumberland
14601 Burbridge Road S.E.
Cumberland, Maryland 21502

2. Nature and/or Description of Action being Approved:

This action is for the acquisition of comprehensive medical services for the inmate population at FCI Cumberland. The procurement of medical services is urgent in nature in order to provide for the continued continuity of care for the inmate population.

3. Description of Supplies or Services Required to Meet the Agency Needs:

As part of the mission of the FCI Cumberland, comprehensive medical services are provided to the inmate population. When a medical need arises, that cannot be provided by FCI Cumberland, Bureau of Prison staff, referrals are made to community based medical providers. The immediate availability of community-based health care is critical to the orderly operation of FCI Cumberland. Additionally, FCI Cumberland is a Care Level II facility housing fragile inmates with conditions that require frequent clinical contact. These inmates with chronic or recurring conditions may require periodic hospitalization. A disruption of medical services would be detrimental to the orderly operations of FCI Cumberland.

This action is for the acquisition of comprehensive medical services pending the award of a new contract. This requirement is subject to the availability of funds (FAR 52.232-18). The services will be procured by purchase orders. The period of performance will be from May 1, 2025, to May 31, 2025. The estimated aggregate value for this requirement is \$100,000.00.

4. Statutory Authority Permitting Other Than Full and Open Competition:

This action is being conducted under authority of 41 U.S.C 3304(a)(2) and FAR 6.302-2(a)(2).

5. Reason for authority cited:

A Request for Contract Action packet for comprehensive medical service was provided to the Field Acquisition Office (FAO). The Award is anticipated to be issued in 2025 calendar year. In March 2020 the Bureau of Prison Implemented the emergency plan for the COVID-19 outbreak minimizing the progression of various procurement actions in response to the Agency's immediate need. Agency response to the pandemic has extended the anticipated effective date of award.

FCI Cumberland continues to offer medical services to the inmate population. American Correctional Healthcare has been the incumbent for approximately five years and has an established network of medical providers and facilities available locally to continue to treat FCI Cumberland's inmates. In an effort to maintain the continuity of medical care, it is in the best interest of FCI Cumberland to continue to utilize American Correctional Healthcare to ensure the overall mission of basic and emergency health care if offered.

Therefore, it is in the best interest of the Government to procure these services from a vendor who can provide the services immediately. Any delay in medical services to FCI Cumberland would severely disrupt the orderly operations.

6. Efforts made to obtain competition:

As stated in FAR 5.202(a)(2), the proposed contract action represents an unusual and compelling urgency, which precludes competition to the maximum extent practicable. Delay of contract award would result in serious injury, financial, or other, to the Government if the agency complies with the time periods specified in FAR 5.203. Therefore, due to the urgent nature of this procurement action, a synopsis notice was not required.

7. Determination of fair and reasonable:

The Contracting Officer used comparison of proposed prices with prices obtained through market research for the same or similar items that were competitively awarded through the Field Acquisition Office in Grand Prairie, Texas and FCI Cumberland, Maryland. Therefore, pursuant to FAR 15.404-1(b) (2) (ii), prices for these services are deemed fair and reasonable. The Contracting Office will monitor pricing to ensure that it continues to satisfy this determination.

8. Description of the Market Survey Conducted:

Extensive market research was conducted for the ongoing competitive acquisition that is currently being processed by FAO. The market research will result in a competitively awarded acquisition. Market research for this temporary action was not conducted based on the urgent and compelling need to maintain the existing medical services to support the operations of FCI Cumberland pending the award of a contract.

9. Other Facts Supporting the Use of Other Than Full and Open Competition:

Not applicable. Please refer to item 5.

10. List of Sources, Expressing in Writing, Interest in the Acquisition:

There are no other sources available that would be able to provide the service in the timeframe required by the Government.

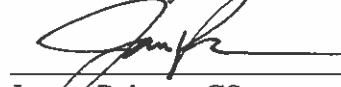
11. Statement of actions to remove competition barriers:

The acquisition of these services is necessary pending the award of a comprehensive medical services contract. The requirement is being competed by FAO. As supported in this document, our experience indicates that a single source provider for comprehensive medical services is beneficial to the agency and the inmate population we service. Once the new contract is competitively awarded, further justification for other than full and open competition will not be necessary.

12. Certifications and Approvals:

I hereby certify that the above justification is accurate and complete to the best of my knowledge and belief.

Submitted by:



James Palmer, CS
FBI Cumberland

05/01/25
Date